

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index #  
Date of filing:

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RASHAWNT E. MACK,

Plaintiff designates Bronx  
County as the place of trial

Plaintiff,

Basis of the venue is Locus  
of Occurrence

-against-

THE CITY OF NEW YORK, SERGEANT RANDOLPH  
PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE  
OFFICERS #1-2 (names being fictitious as they are  
currently unknown),

**SUMMONS**

Plaintiff resides at  
3012 Villa Avenue, Apt. 18  
Bronx, New York 10468

Defendants.

County of Bronx

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**TO THE ABOVE NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

**Defendant's address:**

THE CITY OF NEW YORK,  
100 Church Street  
New York, New York 10007

**Plaintiff's attorneys:**

RUBENSTEIN & RYNECKI, ESQS.  
26 Court Street, Suite 1200  
Brooklyn, New York 11242  
(718)522-1020

SERGEANT RANDOLPH PENA-MEDINA  
Shield No.: 327, Tax ID # 953231  
900 Fteley Avenue  
Bronx, New York 10473

Dated: Brooklyn, New York  
March 9, 2023

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
RASHAWNT E. MACK,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, SERGEANT RANDOLPH  
PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE  
OFFICERS #1-2 (names being fictitious as they are  
currently unknown),Defendants.  
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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the  
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as  
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT  
AND BATTERY ON BEHALF OF RASHAWNT E. MACK**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 1, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff was held on September 19, 2022.

6. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), as police officers, agents, servants and/or employees.

7. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, RASHAWNT E. MACK, was lawfully present at or about the premises known as the 43<sup>rd</sup> Precinct, located at 900 Fteley Avenue, in the County of Bronx, City and State of New York.

8. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, after entering the precinct to request a form to report one of the officers for false arrest and charging him with four (4) traffic tickets, the plaintiff, RASHAWNT E. MACK, was approached and assaulted, battered, and forcibly thrown down a flight of stairs by the defendants, SERGEANT PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE Officers #1-2 (names are fictitious as they are currently unknown).

9. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, plaintiff, RASHAWNT E. MACK, was assaulted and battered by defendants, SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), who committed the aforementioned assault and battery upon the plaintiff, RASHAWNT E. MACK, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on April 18, 2022, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without justification, probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, RASHAWNT E. MACK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT  
HIRING AND RETENTION ON BEHALF OF RASHAWNT E. MACK**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), who assaulted, battered and violated the civil rights of the plaintiff, RASHAWNT E. MACK.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, RASHAWNT E. MACK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL  
AND NEGLIGENT INFLICTION OF EMOTIONAL  
DISTRESS ON BEHALF OF RASHAWNT E. MACK**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That the defendant, THE CITY OF NEW YORK, including but not limited to SERGEANT RANDOLPH PENA- MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

21. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, RASHAWNT E. MACK.

22. That as a result of said intentional and negligent acts, the plaintiff, RASHAWNT E. MACK, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

23. By reason of the foregoing, the plaintiff, RASHAWNT E. MACK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL  
RIGHTS VIOLATION ON BEHALF OF RASHAWNT E. MACK**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, RASHAWNT E. MACK.

26. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

27. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

28. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

29. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), are unfit officers who have previously committed the acts alleged herein

and/or have a propensity for unconstitutional conduct.

30. As a direct and proximate result of this unlawful conduct, the plaintiff, RASHAWNT E. MACK, sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR  
PUNITIVE DAMAGES ON BEHALF OF RASHAWNT E. MACK**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

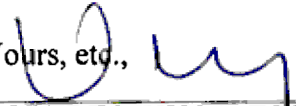
33. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to SERGEANT RANDOLPH PENA-MEDINA OF THE 43<sup>rd</sup> PRECINCT and POLICE OFFICERS #1-2 (names being fictitious as they are currently unknown), herein-above alleged.

34. By the reason of the foregoing, the plaintiff, RASHAWNT E. MACK, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**WHEREFORE**, plaintiff, RASHAWNT E. MACK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, RASHAWNT E. MACK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, RASHAWNT E. MACK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, RASHAWNT E. MACK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower

Courts on the **Fourth** Cause of Action; plaintiff, RASHAWNT E. MACK, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York  
March 9, 2023

Yours, etc.,   
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ROBERT MIJUCA, ESQ.  
RUBENSTEIN & RYNECKI, ESQS.  
Attorneys for Plaintiff  
RASHAWNT E. MACK  
26 Court Street Suite 1200  
Brooklyn, New York 11242  
(718) 522-1020  
File No.:22RM04-18



**ATTORNEY'S VERIFICATION BY AFFIRMATION**

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

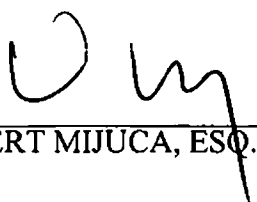
I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

**SUMMONS AND COMPLAINT**

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York  
March 9, 2023

  
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ROBERT MIJUCA, ESQ.